

attorney ever representing the Defendant.

Defendant signed the Stipulation alone, without representation, and there have been no Substitutions of Attorney on her behalf filed in this case.

No documents have ever been submitted on behalf of the Defendant suggesting that she has representation.

Thus, this court does not find that Defendant was properly notified of this hearing.

Disposition

Motion is continued for 30-60 days for Plaintiff to properly serve Defendant. Plaintiff to provide notice to Defendant of next hearing date.

Plaintiff to file Order.

3. 9:00 AM CASE NUMBER: L24-04232

CASE NAME: CITIBANK N.A. VS. GINO MAYNETTO

***HEARING ON MOTION IN RE: TO VACATE DISMISSAL AND ENTER JUDGMENT UNDER TERMS OF STIPULATED SETTLEMENT**

FILED BY: CITIBANK N.A.

TENTATIVE RULING:

Background

Plaintiff filed, on January 7, 2026, a Motion to Vacate Dismissal and Enter Judgment, under Section 664.6 of the Code of Civil Procedure. The Motion is scheduled for hearing on January 27, 2026.

Notice of the Motion was served on Defendant, via mail service, on January 7, 2026.

The Motion is unopposed.

Analysis

Section 1005 of the Code of Civil Procedure requires notice for a motion hearing of at least 16 court days. January 7, 2026, doesn't pass muster at 13 court days.

Disposition

This Motion will be continued 30-60 days to give Defendant the opportunity to respond.

Plaintiff to file Order and to provide notice of next hearing.

4. 9:00 AM CASE NUMBER: L24-08569

CASE NAME: WELLS FARGO BANK, N.A. VS. ANA GUANZON

***HEARING ON MOTION IN RE: DEF MTN TO COMPEL DEPO ATTEND/TEST OF JASON GILL IN ALT PERSON MOST KNOWLEDGEABLE FILED BY DEF
FILED BY: GUANZON, ANA M**

TENTATIVE RULING:

Disposition

Parties, at the 1/15/26 CMC, indicated the deposition of the witness at issue in this motion would occur on 1/19/26. This court finds this motion to now be moot.

This motion will be dropped from calendar.

5. 9:00 AM CASE NUMBER: L25-01668

CASE NAME: FARIBORZ GHORBAN VS. VICTOR OSORIA

***HEARING ON MOTION IN RE: TO CORRECT CASE CLASSIFICATION FROM LIMITED TO UNLIMITED
FILED BY: GHORBAN , FARIBORZ**

TENTATIVE RULING:

Background

Plaintiff filed, on November 14, 2025, a Motion to modify the classification of the matter from Limited Civil to Unlimited Civil. The Hearing is scheduled for January 27, 2026.

The Motion is unopposed yet there is no proof that notice has been provided to Defendant.

Analalysis

Motion continued for 30 to 60 days for Plaintiff to provide notice to Defendant.

Plaintiff to file Order and notify of Defendant of subsequent hearing date.

6. 9:00 AM CASE NUMBER: L25-03141

CASE NAME: PORTFOLIO RECOVERY ASSOCIATES LLC VS. ERICK OCHOA

***HEARING ON MOTION FOR DISCOVERY FOR ORDER THAT MATTERS IN REQUEST FOR ADMISSION
OF TRUTH OF FACTS BE DEEMED ADMITTED**

FILED BY: PORTFOLIO RECOVERY ASSOCIATES LLC

TENTATIVE RULING:

This matter is no longer on calendar.

7. 9:00 AM CASE NUMBER: L25-08787

CASE NAME: ODK CAPITAL, LLC VS. RESONANCE EXECUTIVE LLC

***HEARING ON MOTION IN RE: TO COMPEL ARBITRATION AMD TO STAY ACTION**

FILED BY: KIMBLE, DANIEL

TENTATIVE RULING: